



CHAPTER ccxiii.

An Act for empowering the North Wales Power and Traction Company Limited to construct generating stations and supply electricity in certain parts of North Wales and for other purposes. [15th August 1904.] A.D. 1904.

WHEREAS the erection of generating stations and works as hereinafter provided and the supply of electricity within the area of supply herein-after defined would be of public and local advantage :

And whereas the North Wales Power and Traction Company Limited (in this Act called "the Company") are willing at their own expense to construct such generating stations and works and to supply electricity within such area under the powers and subject to the conditions hereinafter contained and it is expedient that the powers hereinafter contained be conferred on them :

And whereas by the Portmadoc Beddgelert and South Snowdon Railway Act 1901 (in this Act referred to as "the Portmadoc Act") the Portmadoc Beddgelert and South Snowdon Railway Company (in this Act called "the Portmadoc Company") were incorporated and authorised to construct certain railways therein described and by the said Act powers were conferred upon the Portmadoc Company for and with respect to the construction of generating stations and the generation of electricity and the supply thereof within certain parts of the county of Carnarvon and in connection therewith power was conferred upon the Portmadoc Company to abstract impound appropriate and use the waters of Llyn Llydaw and Llyn Teyrn :

And whereas it is expedient that the powers conferred upon the Portmadoc Company by the Portmadoc Act with respect to

A.D. 1904. the electrical undertaking authorised by that Act (other than the powers of working the railways authorised by the said Act by electrical or other power) should be transferred to and vested in the Company and further powers for the construction of works and otherwise in connection therewith as provided by this Act should be conferred upon the Company :

And whereas plans and sections showing the lines and levels of the works by this Act authorised and plans showing the lands which may be taken or used compulsorily under the powers of this Act with a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Carnarvon and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the North Wales Electric Power Act 1904.

Application
of Electric
Lighting
Acts.

2. This Act shall be deemed to be a special Act within the meaning of the Electric Lighting Acts 1882 and 1888 and the Electric Lighting (Clauses) Act 1899 (which Acts are hereinafter referred to as "the principal Acts") but sections 2 and 3 of the Electric Lighting Act 1888 shall not apply to the undertaking by this Act authorised or to the Company in respect thereof Provided that nothing herein contained shall prejudice or affect the rights of the local authority of any district within the area of supply defined in section 32 of the Portmadoc Act with respect to the purchase of any part of the undertaking by that Act authorised The provisions of section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the laying down or placing of any works in along under or across the bed or foreshore of any river.

Incorporation
of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent

with or varied by the provisions of this Act) are subject to the provisions of this Act hereby incorporated with this Act (that is to say):—

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The provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and the entry on lands by the promoters of the undertaking:

The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say):—

The construction of the waterworks;

The construction of works for the accommodation of lands adjoining the waterworks;

Mines;

The breaking up of streets for the purpose of laying pipes:

And the provisions of the schedule annexed to the Electric Lighting (Clauses) Act 1899 except the following provisions that is to say section 2 subsection (2) sections 3 5 7 to 9 21 to 29 30 (so far as regards supply to authorised undertakers) 31 to 37 41 48 75 and 78 and any provisions (other than those of section 69) with respect to the revocation of the special order and the sections and provisions so excepted from incorporation shall not apply to the Company or the undertaking except so far as they are by the Portmadoc Act made applicable to the electrical undertaking of the Portmadoc Company which is by this Act transferred to the Company and section 81 of the said schedule shall not apply to any generating station or works erected on any of the lands described in the First Schedule to this Act.

4. In this Act the several words terms and expressions to which by the Electric Lighting Acts 1882 and 1888 or the Acts incorporated therewith or herewith meanings are assigned shall have the same respective meanings unless varied by this Act or unless there be something in the subject or context repugnant to such construction And in this Act—

Interpreta-
tion.

“The undertaking” means the undertaking by this Act authorised;

“Local authority” means with respect to each part of the area of supply the local authority as defined by the principal Acts for that part;

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—

“County council” means with respect to each county which or any part of which is within the area of supply the county council of that county;

“Authorised undertakers” means—

(1) Any authority authorised by any general or special Act to undertake or contract for the lighting of streets bridges or public places within the area of supply as defined by this Act;

(2) Any local authority company body or person authorised by Act of Parliament or Provisional Order confirmed by Parliament to supply energy within the area of supply as defined by this Act (in this Act referred to as “authorised distributors”).

Undertakers.

5. The Company shall for the purposes of this Act be the undertakers within the meaning of the principal Acts.

As to rail-
ways tram-
ways &c.

6. The provisions of section 13 of the Electric Lighting Act 1882 and of section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 restricting the breaking up of tramways or railways where laid across or along any highway on the level or the roadway of or approaches to any bridge over any railway within the area of supply shall not apply to the Company.

General pur-
poses and
powers of
Company.

7. Subject to the provisions of this Act the Company may construct electric works and may generate produce use and supply electrical energy or power and generally may carry out the powers and purposes of this Act and the powers of the Company under this Act shall include the carrying on of electrical undertakings the erection maintenance manufacture working user production storage and supply sale letting and disposal of stations buildings dynamos accumulators engines batteries machinery vessels apparatus works plant stock electrical energy or power and any materials products matters or things arising or used in the process of producing generating using or transforming such energy or power and accumulators meters fittings lamps storage motors apparatus matters and things and the exercise of such powers and doing of such works and supply of such materials and use of such power as may be necessary or convenient in and for the production storage transmission conveyance measurement distribution use and supply of electrical energy or of power and the providing and working materials for that purpose or for fitting up and repairing such articles matters and things as aforesaid or otherwise carrying on the undertaking.

8. Subject to the provisions of this Act the area of supply shall be—

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Area of
supply.

The county of Carnarvon the county of Denbigh (exclusive of the borough of Wrexham and the rural district of Wrexham) the county of Merioneth and the county of Anglesey.

9. On the passing of this Act the rights powers privileges authorities duties and obligations which by the Portmadoc Act are conferred and imposed upon the Portmadoc Company with respect to the electrical undertaking by that Act authorised (except those conferred by sections 34 and 40 of the said Act and those relating to the issue of capital and borrowing of money) shall by virtue of this Act be transferred to and vested in the Company who may in their own name and under their own seal or under the hands of their directors secretary officers and servants exercise in connection with and for the purposes of their undertaking under this Act all those rights powers privileges and authorities as fully and effectually in all respects as if the same had been expressly conferred upon the Company for those purposes :

Transfer to
Company of
certain
powers of
Portmadoc
Company.

Provided that nothing in this Act contained shall prejudice the powers of borrowing and securing money given to the Company by their memorandum of association and the Company may give to mortgagees of the said undertaking the right to enforce payment of arrears of interest or principal and interest due on their mortgages by the appointment of a receiver or of a receiver and manager :

Provided also that nothing in this Act shall restrict limit or prejudice the powers or obligations of the Company with respect to the supply of energy within the area of supply defined in section 32 of the Portmadoc Act which are by this Act transferred to the Company.

10. Subject to the provisions of this Act the Company may enter upon take hold and use the lands shown on the deposited plans and described in the deposited book of reference which are specified in the First Schedule to this Act and may on the said lands or any part or parts thereof or on any other lands for the time being belonging to them erect maintain work and use a station or stations for producing generating using transforming transmitting conveying and distributing electrical energy or power and any material product matter or thing arising or used in the process of such generation or transformation with all necessary

Lands for
generating
station.

A.D. 1904. dynamos batteries accumulators storage motors generators engines turbines plant machinery works buildings appliances apparatus and conveniences for that purpose and may produce generate transform transmit convey store use and distribute such energy power materials products matters and things and supply and distribute the same accordingly Provided that the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands (other than the lands specified in the said First Schedule) on which any such generating station may be constructed.

Repeal of
section 37 of
Portmadoc
Act.

11. Section 37 (Power to erect generating station) of the Portmadoc Act is hereby repealed.

Power to
execute
works.

12. Subject to the provisions of this Act the Company may in the lines and within the limits of deviation shown upon the deposited plans and according to the levels shown on the deposited sections execute the works hereinafter mentioned for the purpose of impounding abstracting appropriating and using the water of Llyn Llydaw under section 39 of the Portmadoc Act as extended by this Act and may enter upon take use and hold such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose.

The works hereinbefore referred to will be situate in the parish of Beddgelert in the county of Carnarvon and are—

No. 1 A dam or embankment to be constructed across the Afon Glaslyn at a point one hundred and ten yards or thereabouts measured along the river in a south-easterly direction from the footbridge over that river near the point where it emerges from Llyn Llydaw and extending for a distance of one hundred and seventy yards or thereabouts in a south-westerly direction and a distance of three hundred and seventy-five yards or thereabouts in a north-easterly direction from the said river:

No. 2 A conduit or line of pipes commencing in Llyn Llydaw at or near a point three hundred and forty yards or thereabouts south-west of the southern end of the causeway over Llyn Llydaw passing thence alongside of or near the Afon Glaslyn and terminating in the lands described in the First Schedule to this Act at or near the north-west corner thereof:

And the Company may subject to the provisions of this Act make all necessary or convenient cuts channels adits catchwaters aqueducts culverts tunnels drains sluices by-washes weirs gauges reservoirs tanks banks walls bridges arches piers abutments embankments telegraphs telephones roads approaches engines machinery and appliances as may be necessary or convenient in connection with the works in this section mentioned or any of them or for the purposes of this Act: A.D. 1904.

Provided that any telegraphs and telephones made by the Company shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

13. In the construction of the works by this Act authorised the Company may deviate from the lines and situations thereof as shown upon the deposited plans to any extent within the limits of deviation shown upon those plans and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding fifty feet Provided that the Company shall not construct the embankment of a greater height above the general surface of the ground than that shown upon the deposited sections and five feet in addition. Power of deviation.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege required for the purposes of this Act (not being an easement right or privilege of water in which persons other than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to take easements &c. by agreement.

15. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown upon the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Carnarvon for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certi- Correction of errors &c. in deposited plans and book of reference.

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 — ficate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and with the clerk to the parish council of the parish of Beddgelert and such certificate shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

16. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

As to route for electric lines.

17.—(1) Any electric lines laid down by the Company under the powers by this Act granted under any street shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the Company and the local authority or the county council in the case of any street repairable by them or as failing agreement shall be settled by the Board of Trade And the Company shall show on the plan of the works to be served on such local authority in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated with this Act the route proposed to be taken and the dimensions and position of the proposed trench.

(2) Where the local authority of any borough or urban district object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of such borough or district or be otherwise inconvenient and indicate an alternative route or deviation which in the opinion of the Board of Trade is reasonable and does not involve undue increase of expenditure such alternative route or deviation shall be adopted Provided nevertheless that the provisions of this subsection shall not take away or prejudicially affect the rights of the Postmaster-General under section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of such alternative route or deviation.

(3) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Board of Trade under this or the following section shall unless the Board of Trade shall certify that the action of the local authority in the matter has been unreasonable be paid by the Company.

18. The consent of the local authority to the placing of electric lines above ground under section 14 of the Electric Lighting Act 1882 and paragraph (B) of section 10 of the schedule to the Electric Lighting (Clauses) Act 1899 shall not be unreasonably withheld and if any question arises whether that consent is unreasonably withheld or not that question shall be decided by the Board of Trade.

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Overhead
wires.

For the purposes of this section and the sections of the said Acts of 1882 and 1899 in this section referred to the expression "local authority" shall as regards any main road in any rural district in the county of Carnarvon be deemed to extend to and include the county council of Carnarvon.

19.—(1) It shall be lawful for the Company within the area of supply to lay down maintain repair alter and use pipes for conveying water and any material matter or thing used by them in or resulting from the process of generating or transforming electricity to or from any generating station of the Company and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall so far as applicable extend and apply to the laying down repairing altering or removing of pipes for such purposes but nothing contained in this Act shall authorise the Company to supply water to any person.

Power to lay
down pipes.

(2) Where any pipe to be laid by the Company under the powers of this section crosses over or under or is situate within three feet of any mains pipes or other works of any company or authority supplying water or gas the same shall be laid down under the superintendence and to the reasonable satisfaction of the engineer of that company or authority as the case may be.

20. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like

Works below
high-water
mark not
to be com-
menced with-
out consent
of Board of
Trade.

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Cables or wires under or across tidal water.

21. Notwithstanding anything contained in this Act any cables pipes or wires to be laid or placed by the Company under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade may require.

For protection of Menai Bridge.

22. Nothing in this Act or in any Act incorporated herewith shall authorise the Company to carry or lay any cables wires or pipes over or across or in any way to interfere with the Menai Bridge except with the consent in writing of the Commissioners of Works first had and obtained for that purpose and on such conditions as those Commissioners may think fit to prescribe.

For the protection of county councils.

23. The following provisions for the protection of the county councils of Carnarvon Denbigh Merioneth and Anglesey respectively (each of whom is in this section called "the county council") shall (notwithstanding anything in this Act contained) unless otherwise agreed in writing between the county council and the Company apply and have effect in respect of the exercise within the said counties respectively of the powers conferred upon the Company by this Act:—

- (1) The Company shall not in the construction of the works by this Act authorised without the previous consent in writing of the county council under the hand of their clerk (which consent shall not be unreasonably withheld) raise lower or divert any main road vested in the county council or to which or the maintenance repair and improvement whereof the county council makes any contribution or payment nor shall the Company without such consent as aforesaid (which shall not be unreasonably withheld) interfere with the structure of any county or hundred bridge or approach repairable by or under the control of the county council or towards the maintenance repair or improvement of which any contribution or payment is made by the county council:

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- (2) All mains pipes wires or other works to be laid or constructed in along or across or in any way affecting any road open space bridge or approach vested in or repairable by or under the control of the county council shall be constructed and laid under the superintendence if the same be given and to the reasonable satisfaction of the surveyor of the county council (in this section referred to as "the county surveyor") and in such position as he shall by writing under his hand direct and in accordance with plans and sections to be approved by him in writing before the commencement of the work and the Company shall in executing any such work conform to all reasonable requirements of the county surveyor and shall pay to the county council any reasonable expenses incurred by them in relation to such superintendence approval and requirement Provided that if for a period of two months after the submission of such plans to the county surveyor he shall fail to signify in writing to the Company his disapproval thereof and the grounds for such disapproval he shall be deemed to have approved of the same :
- (3) All works shall when commenced be executed with all reasonable despatch and so as not to stop or more than is absolutely necessary for the purpose to impede or interfere with the traffic over or along any such road open space bridge or approach and the Company shall not without the consent of the county surveyor open or break up at any one time a greater consecutive length than two hundred yards nor shall such openings or breakings up be carried out without leaving a clear space of a quarter of a mile between consecutive openings or breakings unless with the like consent :
- (4) The Company shall during the progress of the works take all necessary steps at their own expense for protecting the public using any such road open space bridge or approach from injury and shall be liable for and indemnify the county council against all damage that may be incurred consequent upon any such injury or in consequence of the neglect or omission of the Company to provide such protection and the Company shall also be liable for all damages that may be incurred by the

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county council consequent upon any defects in any of the mains pipes wires or other works of the Company or any defect or default in the laying of the same :

- (5) On completion by the Company of any works authorised by this Act the Company shall reinstate to the reasonable satisfaction of the county surveyor such roads open spaces bridges and approaches as shall or may have been injured damaged affected or tampered with and shall repay to the county council all reasonable expenses of and incident to the maintenance and repair of the roadway footway and surface where interfered with for such period (not being more than twelve months from the proper reinstatement thereof) as there shall be any subsidence in the surface thereof caused by such works :
- (6) The Company shall on demand pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any such road and open space including the roadway over any such bridge and approach upon or in which any mains pipes wires or other works are laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration maintenance or repair of the said mains pipes wires or other works or any part or parts thereof :
- (7) The Company shall pay to the county council the reasonable cost in relation to the examination of any plan served on them in accordance with the Electric Lighting (Clauses) Act 1899 and the superintendence authorised thereby or by the principal Acts of any works of the Company such cost not to exceed in any one case the sum of five guineas :
- (8) The county council shall not be liable for any claim for damages in respect of any injury which may be caused to any mains pipes wires or other works belonging to the Company through the reasonable and proper use by the county council of any steam roller scarifier traction engine or other similar appliance or through the reasonable exercise of any rights functions powers or privileges vested or to be vested in the county council :

- (9) Nothing in this Act contained shall in any way limit A.D. 1904.
affect lessen or control the powers of the county
council to alter amend divert improve widen or recon-
struct any such road or to remove alter widen or
rebuild any such bridge or approach in alongside or
near to which such mains pipes wires or other works
are laid in the same manner as they might have
amended diverted improved removed altered widened
reconstructed or rebuilt any such road open space
bridge or approach if this Act had not been passed
without making any compensation to the Company
for any expense injury or loss to which the Company
may be put in consequence of the exercise by the
county council of such powers and in the event of
any such road open space bridge or approach in
alongside or near to which the mains pipes wires or
other works are laid being amended diverted improved
altered widened reconstructed or rebuilt as aforesaid
the Company shall at their own expense and within
such reasonable time as the county surveyor may
prescribe alter the position of such mains pipes wires or
other works and replace the same to the satisfaction
of the county surveyor Provided that in altering
amending or diverting any main road or any part
thereof nothing shall be done to impede or interfere
with the said works for any greater length of time
than shall be necessary for the execution of the works
of alteration amendment and diversion Provided also
that before such amendment diversion improvement
removal alteration widening reconstruction or rebuild-
ing of any such road open space bridge or approach
shall be commenced the county council shall (except
in case of emergency) give one month's notice in
writing to the Company of their intention to carry
out such works and shall afford at the cost of the
Company all reasonable facilities for temporarily
carrying the mains pipes wires or other works along
such road or across or under the stream so as not to
interrupt the continuous supply of electrical energy
Provided further that any additional reasonable expense
incurred by the county council in carrying out any
such amendment diversion improvement widening

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removal reconstruction alteration or rebuilding as aforesaid solely by reason of the existence of such mains wires pipes or other works of the Company shall be borne by and recovered from the Company by the county council :

- (10) If owing to the abandonment of the undertaking or any part thereof any mains pipes wires or other works laid in pursuance of the powers of this Act under any such road open space bridge or approach shall for the space of three years be disused and such disuser be proved to the satisfaction of the Board of Trade or if the powers of the Company shall under the section of this Act the marginal note whereof is "Cesser of powers" at any time cease the said Board may if they think fit by order sanction the removal of such mains pipes wires or other works and the county council may (subject however to any agreement between them and the Company) forthwith remove the same with all reasonable care and the Company shall pay to the county council the reasonable cost of such removal and of the reinstatement of such road open space bridge or approach in which the same were laid and if the Company fail to pay such costs within one month after the ascertainment of and application for the same the county council may without any previous notice to the Company (but without prejudice to any other remedy they may have for the recovery of the amount) sell and dispose of the materials of the mains pipes wires and other works so removed either by public auction or private contract and for such sum or sums and to such person or persons as they think fit and may out of the proceeds of such sale pay and reimburse themselves the reasonable cost of such removal and reinstatement of such road bridge or approach and the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the county council to the Company :
- (11) Any electric lines which shall be placed overhead along across or by the side of any road or any bridge and approaches repairable by or under the control of or towards the maintenance of which any contribution

or payment is made by the county council shall be constructed and carried in accordance with such method of construction or carriage and with such precautions as the county council may reasonably require. Provided always that if any question arises as to whether such requirements of the county council are reasonable or not that question shall be decided by arbitration:

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(12) The provisions of this section shall be in addition to and not in substitution for any provisions for the protection of the county council contained in this Act or any Acts incorporated herewith:

(13) If any difference shall arise between the county council and the Company touching anything to be done or not to be done under the provisions of this section such difference may and shall unless otherwise agreed be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference.

24. For the protection of the mayor aldermen and burgesses of the borough of Carnarvon (in this section respectively referred to as "the corporation" and "the borough") the following in addition to the other enactments contained in this Act and the Acts incorporated herewith shall apply:—

For protection of
borough of
Carnarvon.

(1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils" shall mutatis mutandis and so far as applicable extend and apply to the corporation and the borough and to the streets roads bridges and wharves in the borough belonging to or under the control of the corporation as if those provisions had been expressly re-enacted herein with reference thereto:

(2) Notwithstanding anything contained in the section of this Act whereof the marginal note is "Limitation of powers" if any question arises under that section as to whether the consent of the corporation as authorised distributors is unreasonably withheld the Board of Trade in determining that question shall amongst other things take into consideration all the circumstances connected with any agreement the corporation may have made with any company or persons with respect to the construction of works for or the giving

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of a supply of electricity within the borough of Carnarvon and all other local circumstances (if any) affecting the said borough.

For protection of corporation of Conway.

25. For the protection of the mayor aldermen and burgesses of the borough of Conway (in this section respectively referred to as "the corporation" and "the borough") the following in addition to the other enactments contained in this Act and the Acts incorporated herewith shall apply:—

- (1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils" shall *mutatis mutandis* and so far as applicable and so far as the same are not expressly varied or extended by the provisions of this section extend and apply to the corporation and the borough and the streets roads bridges and wharves belonging to or under the control of the corporation as if those provisions had been expressly re-enacted herein with reference thereto:
- (2) The Company shall not without the consent in writing of the corporation exercise any of the powers of breaking up streets roads or bridges conferred by this Act or the Acts incorporated herewith within the borough during the period between the Monday immediately preceding Whit Sunday and the thirtieth day of September in any year except in cases of urgency:
- (3) Notwithstanding anything contained in this Act or in any Act incorporated herewith the Company shall not for any purpose whatsoever lay any mains pipes or wires in along over or across the Conway Suspension Bridge or otherwise interfere with the same or any part thereof or the foundations or supports thereof without the express consent in writing in each case of the corporation which consent the corporation may in their absolute discretion withhold Provided that the provisions of this subsection shall not prevent the carrying of any such mains or wires over the River Conway by means of one cable to be suspended from the said bridge:
- (4) In the event of the Company desiring so to carry their mains or wires across the said River Conway by means of a cable as aforesaid such cable shall be so suspended and carried under the superintendence and

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to the reasonable satisfaction of the engineer to the corporation and in such position as he shall by writing under his hand reasonably direct and in accordance with such method of carriage and insulation as he may reasonably approve in writing before the commencement of the work and the Company shall in executing such work conform to the reasonable requirements of the said engineer and shall pay to the corporation any reasonable expenses incurred by the corporation in connection with such superintendence approval or requirement. Provided always that if any question shall arise under this subsection as to the reasonableness of any requirement or direction of the corporation that question shall be decided by the Board of Trade :

- (5) If the corporation during the next ensuing session of Parliament after the passing of this Act or within such extended time as may be agreed upon between the corporation and the Company become authorised by licence or Provisional Order granted by the Board of Trade under the Electric Lighting Acts and confirmed by Parliament to supply energy within the borough the corporation shall be deemed to have been at the date of the passing and for the purposes of this Act authorised distributors within the borough :
- (6) In the event of the Company giving notice of their intention to apply for a licence or Provisional Order under the Electric Lighting Acts for supplying the borough with electricity and the corporation themselves deciding to apply for a licence or Provisional Order for the like purpose during the next ensuing session of Parliament after the passing of this Act or within such extended time as aforesaid then and in that event the Company shall not proceed with their application in competition with nor shall they oppose such application by the corporation.

26. For the protection of the mayor aldermen and burgesses of the borough of Beaumaris (in this section respectively referred to as "the corporation" and "the borough") the following in addition to the other enactments contained in this Act and the Acts incorporated herewith shall apply :—

For protection of borough of Beaumaris.

- (1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils"

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shall *mutatis mutandis* and so far as applicable extend and apply to the corporation and the borough and to the streets roads bridges and wharves in the borough belonging to or under the control of the corporation as if those provisions had been expressly re-enacted herein with reference thereto :

- (2) If the corporation during the next ensuing session of Parliament after the passing of this Act or within such extended time as may be agreed upon between the corporation and the Company become authorised by licence or Provisional Order granted by the Board of Trade under the Electric Lighting Acts and confirmed by Parliament to supply energy within the borough the corporation shall be deemed to have been at the date of the passing and for the purposes of this Act authorised distributors within the borough :
- (3) In the event of the Company giving notice of their intention to apply for a licence or Provisional Order under the Electric Lighting Acts for supplying the borough with electricity and the corporation themselves deciding to apply for a licence or Provisional Order for the like purpose during the next ensuing session of Parliament after the passing of this Act or within such extended time as aforesaid then and in that event the Company shall not proceed with their application in competition with nor shall they oppose such application by the corporation.

For protection of urban district council of Penmaenmawr.

27. The following provisions for the protection of the urban district council of Penmaenmawr (in this section called "the council") shall in addition to the other provisions contained in this Act or any Act incorporated with this Act unless otherwise agreed between the council and the Company be observed and have effect (that is to say):—

- (1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils" shall *mutatis mutandis* and so far as applicable extend and apply to the council and their district and to the streets roads and bridges and wharves belonging to or under the control of the council as if those provisions had been expressly re-enacted herein with reference thereto :

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- (2) The Company shall not without the consent in writing of the council exercise any of the powers of breaking up streets roads or bridges conferred by this Act or the Acts incorporated herewith within the district of the council during the period between the Monday immediately preceding Whit Sunday and the thirtieth day of September in any year except in cases of emergency :
- (3) Where any pipe to be laid by the Company under the section of this Act the marginal note whereof is "Power to lay down pipes" crosses over or under or is situate within three feet of any mains pipes or other works of the council the Company shall give not less than seven days' notice of their intention so to lay the same to the council such notice to be accompanied by a plan section and description of the proposed works and such pipes shall be laid down to the reasonable satisfaction and under the superintendence of the surveyor of the council and the reasonable costs of approval of such plan section and description and of such superintendence shall be paid by the Company :
- (4) Where it shall be found necessary to temporarily support or to provide a suitable and proper foundation for any main pipe or work of the council or to permanently divert any such main pipe or work consequent upon the works of the Company the council may themselves at the reasonable cost in all things of the Company temporarily support or provide such suitable and proper foundation for such main pipe or work or make such diversion :
- (5) If the council during the next ensuing session of Parliament after the passing of this Act or within such extended time as may be agreed upon between the council and the Company become authorised by licence or Provisional Order granted by the Board of Trade under the Electric Lighting Acts and confirmed by Parliament to supply energy within the district of the council the council shall be deemed to have been at the date of the passing and for the purposes of this Act authorised distributors within their district :

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(6) In the event of the Company giving notice of their intention to apply for a licence or Provisional Order under the Electric Lighting Acts for supplying the district of the council with electricity and the council themselves deciding to apply for a licence or Provisional Order for the like purpose during the next ensuing session of Parliament after the passing of this Act or within such extended time as aforesaid then and in that event the Company shall not proceed with their application in competition with nor shall they oppose such application by the council :

(7) Any difference between the council and the Company which may arise under this section shall be settled by arbitration by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such arbitration.

For protection of urban district council of Colwyn Bay and Colwyn.

28. For the protection and benefit of the urban district council of Colwyn Bay and Colwyn (in this section called "the council") the following provisions shall in addition to the other provisions contained in this Act or any Act incorporated with this Act unless otherwise agreed between the Company and the council apply and have effect (that is to say) :—

(1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils" shall mutatis mutandis and so far as applicable extend and apply to the council and their district and to the streets roads bridges and wharves belonging to or under the control of the council as if those provisions had been expressly re-enacted herein with reference thereto :

(2) The Company shall not without the consent in writing of the council exercise any of the powers of breaking up streets roads or bridges conferred by this Act or the Acts incorporated herewith within the district during the period between the Monday immediately preceding Whit Sunday and the thirtieth day of September in any year except in cases of emergency.

For protection of Llandudno Urban District Council

29. For the protection and benefit of the urban district council of Llandudno (in this section called "the council") the following provisions shall in addition to the other provisions con-

tained in this Act or any Act incorporated with this Act unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

A.D. 1904.

- (1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils" shall mutatis mutandis and so far as applicable extend and apply to the council and their district and to the streets roads bridges and wharves belonging to or under the control of the council as if those provisions had been expressly re-enacted herein with reference thereto:
- (2) The Company shall not without the consent in writing of the council exercise any of the powers of breaking up streets roads or bridges conferred by this Act or the Acts incorporated herewith within the district during the period between the Monday immediately preceding Whit Sunday and the thirtieth day of September in any year except in cases of urgency:
- (3) Where any pipe to be laid by the Company under the section of this Act the marginal note whereof is "Power to lay down pipes" crosses over or under or is situate within three feet of any mains pipes or other works of the council the Company shall give not less than seven days' notice of their intention so to lay the same to the council such notice to be accompanied by a plan section and description of the proposed works and such pipes shall be laid down to the reasonable satisfaction and under the superintendence of the surveyor of the council and the reasonable costs of approval of such plan section and description and of such superintendence shall be paid by the Company:
- (4) Where it shall be found necessary to temporarily support or to provide a suitable and proper foundation for any main pipe or work of the council or to permanently divert any such main pipe or work consequent upon the works of the Company the council may themselves at the reasonable cost in all things of the Company temporarily support or provide such suitable and proper foundation for such main pipe or work or make such diversion:
- (5) Any difference between the council and the Company which may arise under this section shall be settled

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by arbitration by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of Llan-
fairfechan
Urban Dis-
trict Council.

30. For the protection and benefit of the urban district council of Llanfairfechan (in this section called "the council") the following provisions shall in addition to the other provisions contained in this Act or any Act incorporated with this Act unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

- (1) The provisions of the section of this Act the marginal note whereof is "For the protection of county councils" shall mutatis mutandis and so far as applicable extend and apply to the council and their district and to the streets roads bridges and wharves belonging to or under the control of the council as if those provisions had been expressly re-enacted herein with reference thereto:
- (2) The Company shall not without the consent in writing of the council exercise any of the powers of breaking up streets roads or bridges conferred by this Act or the Acts incorporated herewith within the district during the period between the Monday immediately preceding Whit Sunday and the thirtieth day of September in any year except in cases of urgency:
- (3) Where any pipe to be laid by the Company under the section of this Act the marginal note whereof is "Power to lay down pipes" crosses over or under or is situate within three feet of any mains pipes or other works of the council the Company shall give not less than seven days' notice of their intention so to lay the same to the council such notice to be accompanied by a plan section and description of the proposed works and such pipes shall be laid down to the reasonable satisfaction and under the superintendence of the surveyor of the council and the reasonable costs of approval of such plan section and description and of such superintendence shall be paid by the Company:
- (4) Where it shall be found necessary to temporarily support or to provide a suitable and proper foundation for any

main pipe or work of the council or to permanently divert any such main pipe or work consequent upon the works of the Company the council may themselves at the reasonable cost in all things of the Company temporarily support or provide such suitable and proper foundation for such main pipe or work or make such diversion:

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- (5) Any difference between the council and the Company which may arise under this section shall be settled by arbitration by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such arbitration.

31. The following provisions for the protection of the Conway and Colwyn Bay Joint Water Supply Board (in this section called "the water board") shall in addition to the other provisions contained in this Act or any Act incorporated with this Act unless otherwise agreed between the water board and the Company be observed and have effect (that is to say):—

For protection of Conway and Colwyn Bay Joint Water Supply Board.

- (1) The Company shall not under the section of this Act the marginal note whereof is "Power to lay down pipes" lay or place any mains or pipes within three feet of any mains pipes or other works of the water board. Before the Company shall lay or place any mains or pipes under the said section over or under or within six feet of any mains pipes or other works of the water board they shall give not less than seven days' notice of their intention so to lay the same to the water board such notice to be accompanied by a plan section and description of the proposed work and such mains and pipes shall be laid down to the reasonable satisfaction and under the superintendence of the engineer of the water board and the reasonable costs of approval of such plan section and description and of such superintendence shall be paid by the Company:
- (2) Where it shall be found necessary by the water board temporarily to support or to provide a suitable and proper foundation for any main pipe or work of the water board or permanently to divert any such main pipe or work consequent upon the works of the Com-

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pany the water board themselves may at the reasonable cost in all things of the Company temporarily support or provide such suitable and proper foundation for such main pipe or work or make such diversion :

- (3) Nothing in this Act contained shall confer upon the Company any rights or powers in respect of the land or water rights owned by them within a radius of one mile of the Lake Cowlyd in the parish of Dolgarrog in the county of Carnarvon or within the watershed of the River Afon Ddu in the said parish other than such as they may now possess as owners of such lands or water rights And any reservoir or works which the Company may after the passing of this Act lawfully construct as such owners on their said land shall be constructed only in accordance with plans and sections to be first submitted to and reasonably approved by the water board at their own cost and under the superintendence of the engineer of the water board at their like cost Provided that if for one month after the submission of such plans and sections the water board fail to signify to the Company their disapproval thereof and the grounds of such disapproval they shall be deemed to have approved of the same :
- (4) Any difference between the water board and the Company which may arise in reference to this section shall be settled by arbitration by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Great Western Railway Company.

32. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply :—

- (1) Unless otherwise agreed between the Company and the Great Western Company the Company shall not lay or place any mains pipes or other apparatus in under over or along any bridges of the railways of the Great Western Company but the Company shall and may construct and thereafter maintain at their own expense such bridges culverts or other works requisite or necessary for carrying such mains pipes or apparatus across the railways works and property of the Great

Western Company as may be reasonably required by the principal engineer of that company or in case of difference as may be determined by arbitration in the manner hereinafter provided : A.D. 1904.

- (2) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the works or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such position and manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner hereinafter provided :
- (3) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company :
- (4) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations

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works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :

- (5) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (6) The Company shall acquire only such an easement across over or under any of the railways works or property of the Great Western Company as may be necessary for constructing or maintaining any of the works of the Company and shall pay to the Great Western Company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (7) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said works of the

Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done without unduly interfering with the supply of electricity by the Company :

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- (8) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

33. For the protection of the Shropshire Union Railways and Canal Company (in this section referred to as "the Shropshire Union Company") the following provisions shall unless otherwise agreed between the Company and the Shropshire Union Company apply and have effect (that is to say) :—

For protection of Shropshire Union Railways and Canal Company.

- (1) The Company shall not in the exercise of any of the powers of this Act enter upon acquire interfere in any way with or injure or carry any main pipe wire or other work over along or across any canal reservoir lock aqueduct bridge culvert feeder towing path embankment or other work or property of the Shropshire Union Company or any road repairable by them and shall not in any way impede the navigation of any canal of that company or the traffic to from or along the same or the towing path thereof without in every case the previous written consent of that company :
- (2) All works in any way affecting the canal works or property of the Shropshire Union Company or any road repairable by them shall be executed by the Company under the superintendence of and to the reasonable satisfaction of the engineer of the Shropshire Union Company and in accordance with plans sections and specifications to be previously submitted to and approved by him :

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- (3) If and whenever the Company in executing the works and exercising the powers by this Act authorised and conferred shall injure or damage any canal work or property of the Shropshire Union Company that Company may make good the injury and recover from the Company all expenses thereby incurred :
- (4) If and as often as at any time hereafter the Shropshire Union Company shall have occasion to alter repair raise or rebuild any canal bridge aqueduct culvert or work belonging to them upon over under through along across or by the side of which any main pipe wire or other work may be carried or laid by the Company any alteration of such main pipe wire or other work that may in the opinion of the engineer of the Shropshire Union Company be necessary in connection therewith shall be made and the main pipe wire or other work shall be replaced by and at the expense of the Company but no such altering repairing raising or rebuilding shall be commenced except in cases of emergency until twenty-eight days after notice of the intention of the Shropshire Union Company in that behalf shall have been given by the Shropshire Union Company to the Company and if the Company fail or neglect to alter such main pipe wire or other work the engineer of the Shropshire Union Company may make such alterations thereof as he may consider necessary and the Shropshire Union Company may recover from the Company all expenses of and consequent upon such alteration as or by way of ascertained damages and the Shropshire Union Company shall not be liable to make compensation for any damage loss or injury occasioned by any alteration of such pipe or pipes :
- (5) If any dispute or difference shall arise with reference to the provisions of this section or arising thereout the same shall be referred to an arbitrator to be appointed by the Board of Trade on the application of the Shropshire Union Company or the Company.

For protection of Lord Penrhyn.

34. For the protection of the Right Honourable George Sholto Gordon Baron Penrhyn his heirs sequels in estate and assigns (hereinafter collectively and individually referred to as

“ Lord Penrhyn ”) the following provisions shall have effect (that is to say) :— A.D. 1904.
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Nothing in this Act shall authorise the Company to enter upon use or interfere with any land soil or water or any right in respect thereof vested in or exercised by Lord Penrhyn, nor shall anything in this Act authorise the Company to construct or execute any work or do or permit to be done anything upon any other land so as to take away lessen prejudice or alter any of the rights privileges or powers vested in or exercised by Lord Penrhyn without the consent in writing of Lord Penrhyn.

35. The powers of the Company for the supply of energy under this Act shall be subject to the following restrictions (that is to say) :— Limitation
of powers.

(1) Energy shall be supplied by the Company only—

(A) To authorised undertakers ; and

(B) To persons requiring a supply for power :

(2) The Company shall not supply energy for lighting purposes except to authorised undertakers provided that the energy supplied to any person for power may be used by such person for lighting any premises on any part of which the power is utilised or any car carriage or vehicle :

Provided that where any energy is supplied to any person for power within the area of supply of any authorised undertakers the energy used by such person for such lighting purposes shall not in any week except with the consent in writing of the authorised undertakers exceed the amount of energy used by such person for power :

(3) The Company shall not supply energy (except to authorised undertakers) in any area which at the date of the passing of this Act forms part of the area of supply of any authorised distributors without the consent of those distributors which consent shall not be unreasonably withheld :

(4) If any question arises as to whether the consent of any authorised distributors is unreasonably withheld that question shall be determined by the Board of Trade and the consent shall be deemed to be unreasonably withheld if the authorised distributors are not willing

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and in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard to the terms upon which and the time within which the Company are willing and able to give the supply:

- (5) Nothing in this Act shall prejudice any application which is now being made or may hereafter be made by any local authority company or person for a Provisional Order under the principal Acts for power to supply energy within the area of supply under this Act and in any Provisional Order to be granted after the passing of this Act by the Board of Trade authorising any local authority company or person to supply energy within the area of supply under this Act provision may be made as to the taking over of any supply then given by the Company for use exclusively within the area of supply defined in such Order.

Company to
furnish
supply of
energy to
authorised
undertakers.

36. The Company shall upon being required to do so by any authorised undertakers give and continue to give to such undertakers at such point within the area of supply as such undertakers may reasonably require a supply of energy at a price not exceeding the prices stated in the Second Schedule annexed to this Act and they shall furnish and lay such electric lines as may be necessary for the purpose of supplying to such undertakers at such point the maximum power with which such undertakers may be entitled to be supplied under this Act subject to the conditions following (that is to say) :—

Authorised undertakers requiring a supply of energy as aforesaid shall—

Serve a notice upon the Company specifying the point at which such supply is required to be given and the maximum power required to be supplied and the day upon which such supply is required to commence (not being an earlier day than a reasonable time after the date of the service of such notice having regard to the situation of the point at which such supply is required to be given and to the length of electric line required to be laid and plant required to be erected for affording such supply) ; and

Enter into a written contract with the Company (if required by them so to do) to continue to receive and pay for a supply of energy for a period of at least seven years of such an amount that the payment to be made for the same shall not be less than twenty pounds per centum per annum on the outlay (excluding expenditure on generating plant then erected and any electric line then laid) incurred by the Company in making provision for such supply :

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Provided that any authorised undertakers (not being a local authority) so requiring a supply of energy shall give to the Company (if required by them so to do) security for the payment of all moneys which may become due to the Company under such contract :

Provided further that in all contracts made and entered into by the Company after the expiration of five years from the time when the Company commence to supply energy under this Act the Company shall grant to any such undertakers as favourable terms and conditions for the supply of energy as those granted by the Company to any other authorised undertakers company or persons whose circumstances are similar by any contracts made and entered into after the expiration of the said period.

If any difference arises under this section such difference shall be determined by arbitration.

37. Whenever the Company make default in supplying energy to any authorised undertakers to whom they may be and are required to supply energy in accordance with the provisions of this Act they shall be liable in respect of each default to a penalty not exceeding ten pounds for each day on which the default occurs. Provided that the penalties to be inflicted on the Company under this section shall not exceed in respect of any one default not being a wilful default on the part of the Company the sum of five hundred pounds. And provided also that in no case shall any penalty be inflicted in respect of any default if the Court are of opinion that the default was caused by inevitable accident or force majeure or was of so slight and unimportant a character as not materially to affect the value of the supply.

Penalty for failure to supply.

38. Any person other than an authorised undertaker to whom the Company is under the powers of this Act entitled to

As to supply to other than authorised undertakers.

A.D. 1904. — give a supply of energy for power shall be entitled to require the Company to give such a supply by serving a notice upon the Company as hereinbefore provided in the case of authorised undertakers and entering into a binding contract to continue to receive and pay for a supply of energy upon such terms as failing agreement shall be fixed by a single arbitrator appointed by the Board of Trade and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbitrator shall have regard to the following amongst other considerations:—

- (1) The period for which the person to whom the supply is to be given is prepared to bind himself to take energy :
- (2) The amount of energy required and the hours during which the Company can be called upon to supply such energy :
- (3) The capital expenditure in connection with the supply of such energy :
- (4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply :

Provided that any person so requiring a supply of energy shall give to the Company (if required by them so to do) security for the payment of all moneys which may become due to the Company under such contract.

Notice of
discontinu-
ance of
supply.

39. Any local authority company body or person supplied with energy by the Company under this Act who are desirous of discontinuing to receive such supply shall give to the Company twelve months' notice in writing of their intention to discontinue to receive such supply. Such notice may be given so as to expire at the end of the period for which the local authority company body or person have contracted to continue to receive and pay for such supply or at any subsequent date.

Maximum
power.

40. The maximum power with which any authorised undertakers or person shall be entitled to be supplied shall be of such amount as they may require to be supplied with not exceeding what may be reasonably anticipated as their maximum consumption.

If any difference arises between any such undertakers or person and the Company as to what may be reasonably anticipated as aforesaid such difference shall be determined by arbitration.

41. The prices to be charged by the Company under the powers of this Act shall not exceed those stated in that behalf in the Second Schedule to this Act annexed but nothing in this section or in the principal Acts shall prevent the Company from making any agreements as hereinafter provided The Company may charge for a supply of energy to authorised undertakers or persons supplied by them either by the actual amount of energy so supplied or by the electrical quantity contained in the supply or by such other method as may be agreed between the Company and such undertakers or persons.

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Stated
prices.

42. The capital to be expended by the Company for the purposes of this Act shall not exceed the sum of one million pounds and that capital is in this Act referred to as "the prescribed capital."

Limiting
capital ex-
penditure.

43.—(1) Except as hereinafter provided the profits to be divided by the Company on the prescribed capital in any year shall not exceed ten pounds in respect of every hundred pounds paid up of such capital and that rate of dividend is hereinafter referred to as "the standard rate of dividend."

Relation
between
price and
dividend.

(2) If in any year the average price per unit obtained by the Company for energy supplied by them under this Act throughout the area of supply is less than two and a half pence per unit (hereafter referred to as "the standard price") the dividend which the Company is authorised to pay in that year on the prescribed capital may be increased in the ratio of five shillings per centum in respect of every one and a quarter per centum by which the average price charged by the Company has been below the standard price.

(3) If in any year the average price per unit obtained by the Company for energy supplied by them under this Act throughout the area of supply is more than the standard price the dividend which the Company is authorised to pay in that year on the prescribed capital shall be reduced below the standard rate of dividend in the ratio of five shillings per centum for every one and a quarter per centum by which the average price so obtained by the Company has been above the standard price.

(4) The Company may in addition to the dividends authorised under this Act make good any deficiency in any previous dividends on the prescribed capital which have fallen below the standard rate of dividend.

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Portion of capital to be subscribed before compulsory powers put in force.

44. When one hundred thousand pounds of the prescribed capital shall have been subscribed under contract binding the parties thereto their executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Act in relation to the compulsory taking of land and such sum shall be deemed to be the prescribed sum for the purposes of section 17 of the Lands Clauses Consolidation Act 1845.

Revision of prices &c.

45.—(1) The Board of Trade at any time after the expiration of a period of ten years from the passing of this Act on the application of the Company or of any local authority or three authorised undertakers supplied by the Company under this Act may revise the maximum prices contained in the Second Schedule to this Act and the relation between price and dividend as fixed by this Act and the standard prices as so fixed.

(2) The Board of Trade may if they think fit on the like application make a similar revision at the expiration of a period of ten years from the date at which the last such revision has taken place.

(3) On any such revision the Board of Trade may modify the provisions of this Act both as to the price and the relation between price and dividend so far as may be necessary to carry out their decisions on the revision.

Inspectors &c.

46.—(1) The Board of Trade on the application of any authorised undertakers or person supplied with energy by the Company under the powers of this Act may appoint and keep appointed one or more competent and impartial person or persons to be electrical inspectors under this Act and the Board of Trade may prescribe the fees to be taken by such inspector and the mode of application thereof and those fees shall be accounted for and applied as may be directed by the Board of Trade.

(2) The Company shall whenever reasonably required by any local authority through whose district any trunk main is laid test and furnish a record of the testing of the portion of main within their district and in case the Company fail to comply with the provisions of this subsection any such local authority may apply to the Board of Trade to appoint an inspector for the purpose of testing such main and the foregoing provisions of this section shall apply to the appointment of such inspector and the Company shall pay the cost of such testing.

(3) For the purposes of the section of this Act of which the marginal note is "Limitation of powers" the duties of the electric inspector shall include in addition to the duties provided for in this section the duty of inspecting from time to time of his own motion or on the application of any authorised undertakers any premises within the area of supply of any authorised undertakers supplied with energy by the Company in order to satisfy himself that the provision of subsection (2) of the said section is duly observed. If the inspector shall report that the Company has knowingly supplied or is knowingly supplying contrary to the provisions of the said subsection a court of summary jurisdiction may impose upon the Company a penalty not exceeding ten pounds and a further penalty not exceeding two pounds for every day during which the offence continues.

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47. The Company shall free of charge supply to the county council a copy of the map to be made as mentioned in section 60 of the schedule to the Electric Lighting (Clauses) Act 1899 so far as the same relates to the said county and shall free of charge correct such copy map each year.

Map to be supplied to county council.

48. The Company and any authorised undertakers or any person to whom the Company are entitled to give a supply of energy for power may enter into and carry into effect contracts agreements and arrangements for and with respect to all or any of the following matters (that is to say):—

Agreements.

The supply by the Company to any authorised undertakers or any such person of plant fittings or materials:

The prices to be charged for and the terms and conditions of such supply and the penalties for failure to supply:

The execution by any such undertakers or person on behalf of the Company or by the Company on behalf of such undertakers or person of any works in reference to the supply or use of energy within the area of supply.

49. The Company may within the area of supply purchase erect maintain work use produce store supply sell let and dispose of dynamos accumulators engines batteries machinery vessels apparatus works plant and stock and any materials products matters or things arising or used in the process of producing generating using or transforming energy or power and accumulators meters fittings lamps storage motors apparatus matters and things and may exercise such powers and do such works and supply such materials and use such power as may be necessary or convenient in

Power to supply fittings &c.

A.D. 1904. — and for the production storage transmission conveyance measurement distribution use and supply of electrical energy or of power and for providing and working materials for that purpose or for fitting up and repairing such articles matters and things as aforesaid and may make such reasonable charges therefor as they may think fit.

Transfer of undertakings of local authorities and others to Company.

50.—(1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888 shall have been or may be granted relating to a district or place within the Company's area of supply the undertaking authorised by such Provisional Order and the powers rights authorities and privileges of the undertakers under such Provisional Order and any such undertakers to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such Order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking powers rights authorities and privileges to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking powers rights authorities and privileges they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and the provisions of such Provisional Order shall apply to the supply of electricity by the Company within the area of supply as defined by such Order Provided that (A) in the event of the Company acquiring from any local authority or other undertakers any Provisional Order within the area of supply they shall be allowed to charge for electric energy given under such Order such rates as any such Order prescribes but for power the rates charged by the Company shall not exceed those prescribed by this Act (B) in the case of any Provisional Order granted prior to the year one thousand nine hundred to any local authority the provisions of the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith and (c) none of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 and 1888 or of this Act shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the

purposes of supplying any other portions of the Company's area of supply. A.D. 1904.

(2) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

(3) In the event of any Provisional Order and the undertaking thereby authorised being acquired by the Company under this section the provisions of the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899 shall subject to any modifications of those Acts made by any such Order apply to that undertaking and where the undertakers are a local authority the said undertaking shall be deemed to be within the provisions of section 2 of the Electric Lighting Act 1888 Provided that the periods at which the local authority may under the provisions of the said section repurchase the said undertaking or so much thereof as is within their jurisdiction shall be reckoned from the date of the acquisition thereof by the Company.

51. The Company and the proprietors or trustees of any canal or navigation or any other company or person may enter into and carry into effect contracts agreements and arrangements for and with respect to the supply of water to the Company for condensing and other purposes of their undertaking by any such proprietors trustees company or person. Agreements with regard to supply of water.

52. If within two years after the date of the passing of this Act the Company have not substantially commenced their works for the purpose of carrying out their powers under this Act or if within four years after the date of the passing of this Act the Company have not provided a generating station or generating stations sufficient in the opinion of the Board of Trade and are not in a position to supply therefrom the Board of Trade may order that the powers of the Company under this Act shall cease as to the whole or any part of the area of supply and on any such order being made those powers shall cease accordingly. Cesser of powers.

53. The Company may subscribe for purchase hold and dispose of shares or stock in any incorporated company taking or agreeing to take a supply of electricity from the Company or who are establishing or are about to establish factories or works on any of the lands of the Company and may lend money on mort- Power to subscribe for shares or lend money to other undertakers.

A.D. 1904. — gage bond or other security to any such company or to any firm or person taking or agreeing to take such supply from the Company or who are establishing or are about to establish factories or works on any of the lands of the Company Provided that the amount so subscribed expended and lent by the Company under this section shall not at any one time without the consent of the Board of Trade exceed one hundred thousand pounds.

Copy of Act
to be regis-
tered.

54. The Company shall deliver to the registrar of joint stock companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Costs of Act.

55. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act.

A.D. 1904.

THE FIRST SCHEDULE.

LANDS FOR GENERATING STATION.

Certain lands in the parish of Beddgelert in the county of Carnarvon bounded on the west and south by the Afon Glaslyn and on the east by the Nant Cynnyd and on the north by a footpath between the footbridges over the before-mentioned rivers which are respectively one hundred and fifty yards or thereabouts north of the junction of the two rivers.

THE SECOND SCHEDULE.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Company charges any consumer by the actual amount of energy supplied to him the Company shall be entitled to charge such consumer at the following rates per quarter:—

- (A) For any quantity not exceeding the equivalent of four hundred hours of supply at the maximum power which has been demanded by such consumer at the rate of fourpence per unit:
- (B) For any further quantity exceeding the equivalent of four hundred hours of supply at such maximum power at the rate of three-pence per unit.

SECTION 2.

Where the Company charges any consumer by the electrical quantity contained in the supply given to him the Company shall be entitled to charge such consumer according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of such electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under any regulations made under this Act.

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